

BACKGROUND GUIDE

(UNHRC)

*“Rights of Refugees and Asylum Seekers
Amidst Global Migration Crises: Balancing
sovereignty with humanitarian
responsibilities.”*

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Method Of Research

This self-paced guide aims to give delegate flexibility in their approach to research the following steps are meant to provide motivation and guidance about some possible strategies and minimum expectations for completing this research successfully:

This Study guide is meant to be relevant and practical.

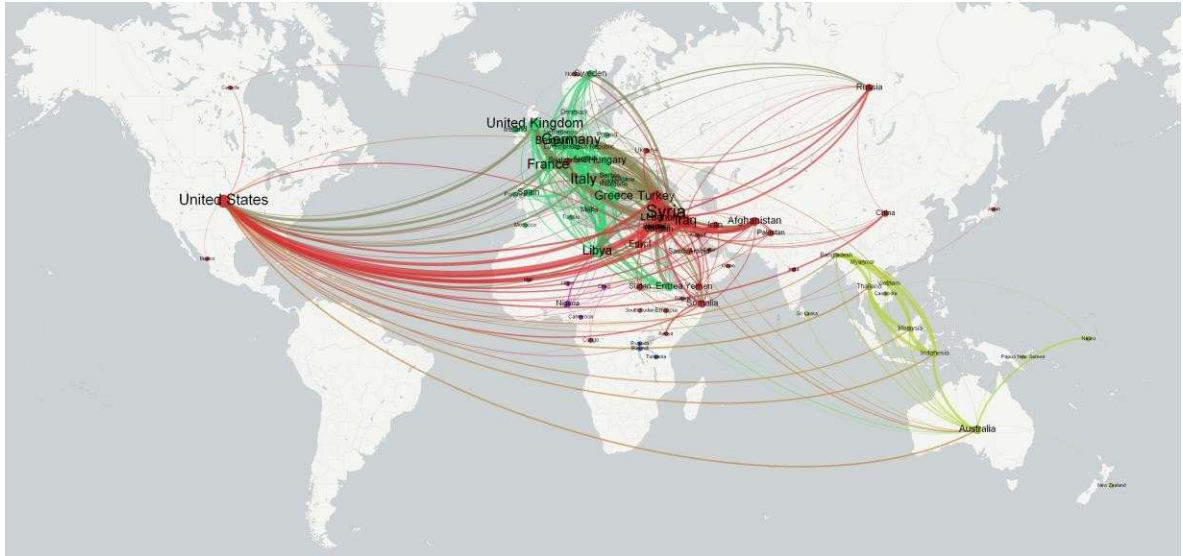
- Before you begin to research, first run through the entire Background guide. Notice the articles and section titles to get an overall idea of what will be involved as you proceed.
- Strive to understand concepts and overall perspectives regarding the United Nations system and the charter.
- Set personal guidelines and benchmarks regarding how you want to schedule your speech and documentation.
- Study the research content and the learning the core matter objectives. At the beginning of each study, guide yourself to the main points. Read the Background guide twice to ensure maximum understanding and mental faculty.
- At the end of each research segments, take the imperative notes that are relatable to the study. Clarify any missed portions by recollecting them.
- After you complete all the research, prepare for the End-of research Document by taking time to review the main points of each researched articles.

Introduction To Committee

The United Nations Human Rights Council (UNHRC) has long been at the forefront of addressing the rights of refugees and asylum seekers, particularly in the context of the ongoing global migration crises. With millions displaced due to conflict, persecution, and climate change, the rights of refugees and asylum seekers are increasingly under threat. The challenge now lies in balancing the sovereignty of states with humanitarian responsibilities.

The focus of this session will be on understanding the roles of states in protecting the rights of displaced persons while also ensuring that the responsibilities do not overwhelm national interests and capacities. This guide will provide delegates with a comprehensive overview of the issue, its historical context, and possible avenues for resolution.

Statement Of The Problem



1.1 Issue Surrounding:

The ongoing global migration crisis has exposed the fragility of existing frameworks protecting refugees and asylum seekers. The tension between state sovereignty and the responsibility to provide humanitarian assistance complicates efforts to ensure adequate protection. This committee seeks to address these challenges by balancing legal obligations, moral imperatives, and practical realities.

1.2 Key Terms:

- **Refugee:** According to the 1951 Refugee Convention, a refugee is a person who has fled their country due to **fear of persecution** based on race, religion, nationality, membership of a particular social group, or political opinion.
- **Asylum Seeker:** An individual who seeks international protection but has not yet been granted refugee status. Asylum seekers must go through a legal process to prove their case.
- **Sovereignty:** The right of a state to exercise control over its territory and population, which includes the ability to decide who enters the country and under what conditions.
- **Humanitarian Responsibility:** The moral and legal obligation of states to protect the rights of individuals who are in vulnerable positions, such as refugees and asylum seekers.

- **Non-Refoulement:** A principle of international law that prohibits the forced return of refugees or asylum seekers to countries where they face threats to their life or freedom.

1.3 Legal Principles:

- **1951 Refugee Convention and 1967 Protocol:** Foundational treaties defining refugee rights and state obligations.
- **Non-Refoulement:** A cornerstone of international refugee law.
- **International Covenant on Civil and Political Rights (ICCPR):** Guarantees certain rights to all individuals, including refugees.

HISTORICAL CONTEXT

2.1 Refugee Crises Through History

1. Post-WWII Displacement and the Creation of the UNHCR:

- World War II caused one of the largest refugee crises in human history with millions displaced across Europe.
- The aftermath of the war led to the establishment of the United Nations High Commissioner for Refugees (UNHCR) in 1950, with an initial three-year mandate to assist and protect European refugees.
- This period marked the development of the 1951 Refugee Convention, the foundational legal framework for protecting refugees.

2. The Indochina Refugee Crisis (1970s):

- The Vietnam War and the rise of oppressive regimes in Southeast Asia led to a mass exodus of refugees, particularly from Vietnam, Cambodia, and Laos.
- Known as the "boat people," many refugees faced perilous journeys across the South China Sea to reach safety.
- This crisis prompted the international community to collaborate through the 1979 Geneva Conference and increase refugee resettlement programs.

3. The Balkan Wars (1990s):

- The dissolution of Yugoslavia resulted in ethnic conflicts, displacing over 2.3 million people in the Balkans.
- Many sought refuge in neighboring European countries, testing the region's asylum and humanitarian systems.
- This crisis emphasized the need for robust mechanisms to address sudden displacement in conflict zones.

4. The Syrian Civil War (2011–Present):

- The war in Syria caused one of the most significant contemporary displacement crises, with over 13 million Syrians displaced, including 6.8 million refugees and 6.5 million internally displaced persons (IDPs).
- Neighboring countries like Turkey, Lebanon, and Jordan host the majority of Syrian refugees, straining their resources and infrastructure.
- Europe faced challenges managing the influx of Syrian refugees, sparking debates on border controls and asylum policies.

5. The Rohingya Displacement Crisis (2017–Present):

- The Rohingya Muslim minority in Myanmar faced ethnic violence and persecution, leading to their mass exodus to neighboring Bangladesh.
- With over 1 million refugees in camps such as Cox's Bazar, this crisis exposed gaps in international frameworks addressing statelessness and minority protection.

2.2 Key Treaties and Conventions

1. The 1951 Refugee Convention:

- Defines “refugee” and outlines rights, including access to asylum and protection from refoulement.
- Applies primarily to those displaced before 1951 in Europe.

2. The 1967 Protocol:

- Expands the scope of the 1951 Convention, removing geographical and temporal limitations.
- Aims to address refugee crises globally.

3. The Dublin Regulation:

- Governs the handling of asylum applications within the European Union, ensuring that only one member state is responsible for an application.
- Criticized for placing disproportionate burdens on border states like Greece and Italy.

2.3 Key Stakeholders:

1. United Nations High Commissioner for Refugees (UNHCR):

- a. The UNHCR is the principal UN agency mandated to protect and support refugees, asylum seekers, and stateless persons.
- b. Its responsibilities include coordinating international efforts, ensuring the rights of displaced persons, and facilitating durable solutions like voluntary repatriation, local integration, or resettlement.
- c. The UNHCR also advocates for policies that uphold the principle of **non-refoulement** and lobbies for funding to address refugee crises worldwide.
- d. Example: In response to the Syrian crisis, the UNHCR has been instrumental in providing shelter, healthcare, and education in camps in Jordan, Lebanon, and Turkey.

2. Host Countries and Countries of Origin:

a. Host Countries:

- i. Countries that receive refugees often face significant socio-economic challenges, including resource strain, public backlash, and security concerns.
- ii. Host nations must balance their international obligations with national priorities, often requiring external aid to meet the demands of large refugee populations.
- iii. Example: Uganda, despite its limited resources, has an open-door policy for refugees and allows them access to work, education, and healthcare.

b. Countries of Origin:

- i. Many countries generating refugees fail to provide safety due to war, persecution, or economic collapse.
- ii. Examples include Syria, Afghanistan, Myanmar, and Venezuela, where conditions force citizens to flee for survival.
- iii. Political instability often hampers international efforts to resolve conflicts and create conducive environments for the return of displaced persons.

3. Non-Governmental Organizations (NGOs) and International Organizations:

a. NGOs:

- i. Organizations like the International Rescue Committee (IRC), Médecins Sans Frontières (Doctors Without Borders), and Save the Children deliver crucial services, including healthcare, food, legal aid, and education.
- ii. Advocacy groups like Amnesty International work to highlight human rights violations and influence policymaking.

b. International Organizations:

- i. Beyond the UNHCR, bodies like the International Organization for Migration (IOM) and regional organizations (e.g., African Union, European Union) play active roles in managing migration and displacement.
- ii. Example: The EU's Asylum, Migration, and Integration Fund (AMIF) supports member states in managing asylum applications and integrating refugees.

4. Civil Society and Local Communities:

- a. Local organizations and host community members are often the first responders to refugee needs.
- b. Integration is more successful where local populations support refugees, but tensions can arise if economic or cultural conflicts emerge.
- c. Example: Grassroots organizations in Kenya's Kakuma Refugee Camp work with locals to provide education and vocational training.

5. Private Sector:

- a. The involvement of private companies in refugee crises is growing, especially in funding, technology solutions, and employment opportunities.
- b. Example: Tech companies like Microsoft and Google have supported digital literacy programs in refugee camps and funded humanitarian initiatives.

6. Refugees and Asylum Seekers (as Stakeholders in Decision-Making):

- a. Refugees are not passive beneficiaries; they play active roles in their own protection and integration.
- b. Inclusion of refugee voices in policy discussions ensures that proposed solutions address their actual needs and priorities.

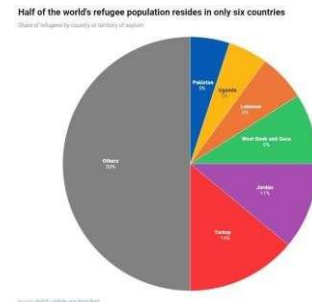
CURRENT ISSUES

3.1 State Sovereignty vs. International Responsibility

The Challenge: States often prioritize their sovereignty, using national security and resource allocation as justifications to limit refugee intake. However, this can conflict with international norms and principles, such as non-refoulement.

Example: The European Union's struggle to create a unified refugee policy demonstrates this tension, with some member states resisting quotas for refugee resettlement.

Key Question: How can the global community ensure that states uphold their humanitarian obligations without undermining their sovereignty?



3.1 Pushback and Border Control Practices



SOURCES: El Universal; Dallas Morning News research

Troy Oxford/Staff Artist

The Challenge: Many states are employing harsh border control measures, including pushbacks, which prevent refugees from seeking asylum and often violate international law. **Example:** Reports of pushbacks in the Mediterranean Sea and at the U.S.-Mexico border highlight the growing use of militarized tactics.

- **Key Question:** What mechanisms can be implemented to monitor and prevent such

practices while ensuring border security?

3.2 Climate Change and Migration

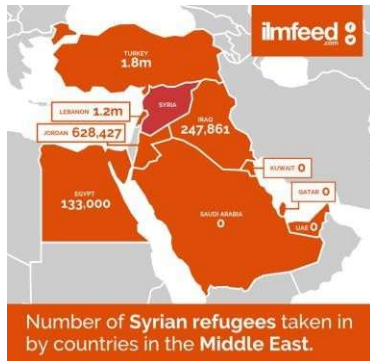
- **The Challenge:** Climate change is increasingly displacing people due to rising sea levels, extreme weather, and resource scarcity. However, "climate refugees" are not formally recognized under existing international frameworks.
- **Example:** Pacific island nations like Kiribati face existential threats from rising sea levels, compelling migration without legal protections.
- **Key Question:** Should international refugee law expand to include climate-induced displacement, and if so, how?

3.3 Protection Gaps and Integration Challenges

- **The Challenge:** Many host countries lack the resources or political will to support refugees effectively, leading to issues like overcrowded camps, inadequate services, and social tensions.
- **Example:** Refugee camps in Bangladesh for the Rohingya community suffer from poor sanitation, limited access to education, and ongoing insecurity.
- **Key Question:** How can international assistance be mobilized to support host countries and ensure sustainable integration of refugees?

REGIONAL OVERVIEW s CASE STUDIES

4.1 Middle East and North Africa (MENA):



The Syrian civil war, which began in 2011, has created over 6.8 million refugees. Most seek asylum in neighboring countries like Turkey, Lebanon, and Jordan, overwhelming their resources. The ongoing conflict in Yemen has internally displaced millions and driven thousands to seek refuge abroad.

- Libya, as a transit point for African migrants attempting to reach Europe, faces challenges of human trafficking and

abuse.

4.2 Sub-Saharan Africa

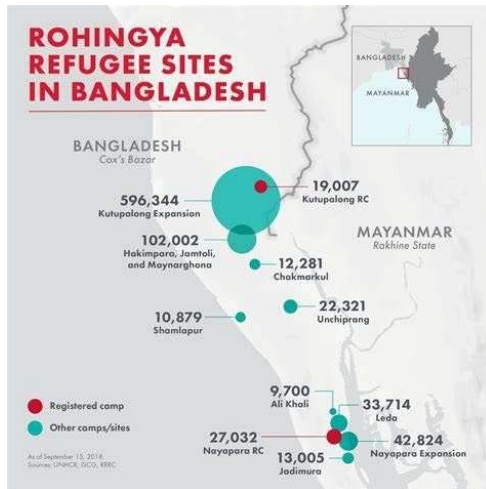


- Conflicts in South Sudan, the Democratic Republic of Congo, and the Sahel region have displaced millions.
- Refugee camps like Kakuma and Dadaab in Kenya are under-resourced and lack proper facilities.
- Climate change-induced displacement is increasingly affecting regions like the Horn of Africa.

4.3 Europe and the Mediterranean Crisis

- Mediterranean Sea crossings remain a perilous route for refugees from Africa and the Middle East, with thousands drowning annually.
- The 2015 migration crisis, driven by the Syrian war, exposed divisions within the EU over asylum policies.
- Asylum systems in Greece, Italy, and Spain remain overwhelmed by new arrivals.

4.4 Asia-Pacific



The Rohingya crisis has displaced over 1 million people, with most seeking refuge in Bangladesh. The lack of a long-term solution exacerbates the problem. Afghanistan's instability has created millions of refugees, with many heading to Pakistan and Iran. Many small island nations in the Pacific face climate-induced displacement, yet no formal recognition for "climate refugees" exists.

4.5 Americas:

- Economic instability, gang violence, and political unrest in Central America have led to mass migrations to the U.S.-Mexico border.
- Policies like Title 42 in the U.S. have restricted asylum applications, forcing migrants into unsafe conditions in Mexico.
- Internal displacement in Venezuela due to economic collapse and political turmoil.

PROPOSED SOLUTIONS

1. Burden-Sharing Mechanisms

- **Concept:** Ensure a fair distribution of responsibilities among nations to prevent undue pressure on specific countries.
- **Implementation:**
 - Establish quotas for refugee intake based on a country's GDP, population, and resources.
 - Develop multilateral agreements to fund host countries struggling to provide adequate resources.
 - Create a global emergency fund for refugee crises, managed by the UNHCR.

2. Expanding Resettlement Programs

- **Concept:** Increase resettlement opportunities to provide refugees with permanent solutions.
- **Implementation:**
 - Encourage more countries to participate in UNHCR-led resettlement programs.
 - Streamline processes to reduce waiting periods for refugees.
 - Provide integration support, including language training, employment assistance, and community programs.

3. Addressing Root Causes

- **Concept:** Resolve the underlying issues driving migration, such as conflict, poverty, and climate change.
- **Implementation:**
 - Invest in conflict resolution and peace-building efforts in regions of origin.
 - Strengthen economic development programs in impoverished areas to reduce economic migration.

- Commit to global efforts to mitigate climate change, including support for vulnerable regions.

4. Strengthening Legal Protections

- **Concept:** Enhance international legal frameworks to ensure better protection for refugees and asylum seekers.
- **Implementation:**
 - Expand the definition of "refugee" to include climate-displaced individuals.
 - Enforce stricter compliance with the principle of non-refoulement.
 - Promote regional agreements that complement international conventions, addressing local challenges.

5. Improving Refugee Integration

- **Concept:** Support long-term solutions for refugees in host countries to foster self-reliance and social cohesion.
- **Implementation:**
 - Provide access to education, healthcare, and employment opportunities for refugees.
 - Foster community-based programs to address cultural and linguistic barriers.
 - Engage private sectors to create employment opportunities for refugees.

6. Promoting International Cooperation

- **Concept:** Foster global partnerships to ensure a united response to migration crises.
- **Implementation:**
 - Strengthen the role of the UNHCR and other international organizations in coordinating global efforts.
 - Encourage joint ventures between states and NGOs to address specific challenges.
 - Establish regular international summits to review progress and adapt strategies.

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